Satyajit Chhotray vs The State Of Nct Of Delhi on 7 July, 2025

Author: Neena Bansal Krishna

Bench: Neena Bansal Krishna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2214/2025
SATYAJIT CHHOTRAY
Through: Mr
Mr
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versus

THE STATE OF NCT OF DELHI .....Respo
Through: Mr. Yudhvir Singh Chauhan, AP
the State with Insp. Devendra
IFSO

CORAM:
HON'BLE MS. JUSTICE NEENA BANSAL KRISHNA
ORDER

% 07.07.2025

1. Bail Application under Section 482 of the Bhartiya Nagrik Suraksha Sanhita, 2023 (hereinafter referred to as the "B.N.S.S.")has been filed on behalf of the Petitioner for grant of Anticipatory Bail in FIR No. 0151/2023 registered under Sectons 419/420/467/478/471/120B IPC read with Sections 43/65/66/66C/66D IT Act at P.S. Special Cell.

2. It is submitted that the NBWs have been filed against the Petitioner for the alleged offence, but he is based in Bhubaneshwar and is a Dy. Manager of ICICI Bank and he did not receive any Notice. It is further submitted that the Anticipatory Bail Application was filed before the learned ASJ in April, 2025 and the interim protection against coercive action was given on 26.04.2025. Eventually, the Anticipatory Bail was disposed of with the following observations:-

> This is a digitally signed order.
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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 09/07/2025 at 21:40:40 "In the peculiar facts of the present case, the Court is not inclined to grant Anticipatory Bail to the accused/applicant however at the same time, the IO is directed to duly comply with the observations of Hon'ble Apex Court in Arnesh Kumar Vs, State of Bihar (2014) 8 SCC 273 & Satyender Kumar

> Antil Vs. CBI 2024 INSC 134.
>
> As it is a cyber fraud case involving several account hence this Court do not want to curtail in the powers of the Investigating Agency by granting an Anticipatory Bail order but the Investigating Agency should also be careful and vigilant to take note of the decisions of the Hon'ble Apex Court to the effect that the arrest is to be made as the last resort only, if the investigation is getting hampered otherwise."

3. Despite there being a protection, apparently, the Respondent has proceeded to execute process under Section 82 Cr.P.C. (84 B.N.S.S.) vide Order dated 04.05.2025. The NBWs and process under Section 82 Cr.P.C. (84 B.N.S.S.) is resorted to only when the Accused fails to appear or absconds or intentionally voids his arrest. Here is the case where the Petitioner himself has approached the Court wherein interim protection was granted and he even joined the investigations till 05.06.2025, as per the Status Report.

4. Clearly, once the Petitioner had joined the process under Section 82 Cr.P.C. should not have been continued by the State as has happened in the present case.

5. In view of the clear observations made by the learned ASJ in the Order dated 09.06.2025 that de procedure of giving Notice be followed for the investigations and no arrest be made and the arrest be made only as the This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 09/07/2025 at 21:40:40 last resort if the investigation is getting hampered, and the provisions of law be strictly complied with.

6. No further directions are required to be made.

7. Accordingly, the Bail Application stands disposed of.

8. In case incriminating evidence is collected during the interrogation of the Petitioner and his arrest is required, the same be done after giving two days prior notice to the Petitioner.

NEENA BANSAL KRISHNA, J JULY 7, 2025 N This is a digitally signed order.

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